

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.8811 of 2023.

Md. Habibur Rahman Jibon and others

.....Accused-Petitioners

-Versus-

The State

...opposite parties

Mr. Md. Abdul Bari, Advocate

.... For the accused-petitioners

Mr. S. S. Arefin Junnun, Advocate

.....For the opposite parties.

Mr. Sujit Chatterjee, D.A.G

... For the State

Heard and Judgment on: 20.02.2024.

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure the Rule was issued calling upon the opposite part to show cause as to why the impugned order dated 29.11.2022 passed by the learned Senior Judicial Magistrate Court No.04, Chandpur in Hazigonj Police Station Case No.36 dated 25.06.2021 corresponding to G. R. No.192 of 2021 (Hazigonj) under sections 419/420/465/467/468/471/109/34 of the Penal Code, now pending in the Court of learned Senior Judicial Magistrate Court No.04, Chandpur should not be quashed and/or such other further order or orders as to this Court may seem fit and proper.

This petition under section 561A of the Code of Criminal Procedure at the instance of five accused persons of G. R. Case No.192 of 2021 (Hazigonj) under sections 419/420/465/467/468/471/109/34 of the Penal Code for quashment of above proceedings.

Facts in short are that the opposite party complainant claiming to be the husband of now deceased Royeli Akter lodged a complaint alleging that his marriage with above Royeli Akter continued till her death on 22.07.2020. After death of Royeli Akter the complainant inherited her valuable properties but to deprive the complainant from above lawful property accused No.1, the brother and heir of above Royeli Akter created a forged talaknama on 01.06.2020 showing that before her death Royeli Akter divorced the complainant. On the basis of above forged talaknama the accused Nos.1 and 2 as plaintiffs instituted Title Suit No.57 of 2021 in the court of Senior Assistant Judge, Hagizonj, Chandpur to grab the property of Royeli Akter.

Mr Md. Abdul Bari learned Advocate for the petitioner submits that Royeli Akter died living the accused persons as her heirs and before her death she divorced the complainant on 01.06.2020. The complainant has filed this false case in order to grab the property of deceased Royeli Akter. As such this false, preposterous and still born case is liable to be quashed.

Mr. S. S. Arefin Junnun learned Advocate for the opposite parties submits that Royeli Akter was issueless and she died living complainant as her husband. As such the complainant lawfully inherited a part of the property left by Royeli Akter and to deprive the complainant from above property the accused persons have created a forged talaknama showing that Royeli Akter divorced the opposite party on 01.06.2020, as such, the complainant rightly filed this case which calls for no interference.

We have considered the submissions of learned Advocates for the respective parties and carefully examined all materials on record.

It is admitted that Royeli Akter was a childless woman and the complainant was her husband and she has died leaving valuable property.

It has been alleged by the complainant that the accused persons have created a forged talaknama and registered the same on 01.06.2020 and on

the basis of above forged talaknama filed Title Suit No.57 of 2021 in the Court of Senior Assistant Judge, Hazigonj which is pending for trial.

Above averments made at page No.08 of the complaint clearly show that the impugned talaknama was produced in Title Suit No.57 of 2021 pending in the court of Senior Assistant Judge, Hazigonj for trial. As such the taking of cognizance of above alleged offence forgery by any court the instance of the complainant is barred by section 195(1)(c) of the Code of Criminal Procedure, 1898.

In above view of the materials on record we find substance in this petition under section 561A of the Code of Criminal Procedure and the rule issued in this connection deserves to be made absolute.

In the result the Rule is made Absolute.

The proceedings of Hazigonj Police Station Case No.36 dated 25.06.2021 corresponding to G. R. No.192 of 2021 (Hazigonj) under sections 419/420/465/467/468/471/109/34 of the Penal Code is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.